

CHAPTER 7.

An Act to grant certain duties of Customs and Inland Revenue, to alter other duties and to amend the Law relating to Customs and Inland Revenue and the National Debt, and to make other provisions for the financial arrangements of the year. [1st August 1904.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

CUSTOMS AND EXCISE.

1. In lieu of the duty of customs payable on tea imported into Great Britain or Ireland, there shall, as from the twentieth day of April nineteen hundred and four, until the first day of July nineteen hundred and five, be charged, levied and paid the following duty (that is to say):—

Tea, the pound, eightpence.

2.—(1) The duties of Customs payable under section one of the Finance Act, 1898, on manufactured tobacco, shall, as from the twentieth day of April nineteen hundred and four, be increased in the case of cigars by sixpence per pound, and in the case of cigarettes by one shilling per pound, and the duties payable under the same section on unmanufactured tobacco shall, as from the same date, be increased, in the case of stripped tobacco, by threepence per pound.

Duty on tea.
Duties on certain kinds of tobacco.
61 & 62 Vict. c. 10.

(2) A rebate, at the rate of three-halfpence for every pound of tobacco, shall be allowed on any increased duty under this Act paid on or after the nineteenth day of July nineteen hundred and four in respect of any stripped tobacco which is shown, to the satisfaction of the Commissioners of Customs, to have been deposited in a bonded warehouse before, or to have been in an importing vessel consigned to a port in Great Britain or Ireland on, the twentieth day of April nineteen hundred and four.

(3) In this section the expression "stripped tobacco" means any leaf tobacco of which the leaf is not complete by reason of the removal of the stalk or midrib or of some portion thereof, but

tobacco shall not be deemed to be stripped tobacco solely by reason of its having been subjected to such process of butting as the Commissioners of Customs allow.

Re-arrangement of tobacco drawbacks and provision as to moisture.
26 & 27 Vict.
c. 7.

3.—(1) Drawback allowed under section one of the Manufactured Tobacco Act, 1863, as extended or amended by any subsequent Act, on tobacco exported from Great Britain or Ireland or deposited in a bonded or King's warehouse shall, as from the fourth day of May nineteen hundred and four, be allowed at the rates set out in the Schedule to this Act, instead of at the rate in force before that date, but subject to the provisions contained in that Schedule.

61 & 62 Vict.
c. 10.
50 & 51 Vict.
c. 15.

(2) Section two of the Finance Act, 1898, is hereby repealed, and in section four of the Customs and Inland Revenue Act, 1887 (which relates to moisture in tobacco), the words "thirty-two per centum" shall be substituted for the words "thirty-five per centum."

Continuance of additional customs duty and drawbacks on tobacco, beer and spirits.
63 & 64 Vict.
c. 7.

4. The additional duties of customs on tobacco, beer and spirits imposed by sections two, three, four and five of the Finance Act, 1900 (including the increased duties imposed by section five of that Act), shall continue to be charged, levied and paid until the first day of July nineteen hundred and five, and, as regards the period for which any additional drawback is allowed under the said section four, July nineteen hundred and five shall be substituted for August nineteen hundred and one.

Continuance of additional excise duties and drawbacks on beer and spirits.
63 & 64 Vict.
c. 7.

5. The additional duties of excise on beer and spirits imposed by sections six and seven of the Finance Act, 1900, shall continue to be charged, levied and paid until the first day of July nineteen hundred and five, and, as regards the period in respect of which any additional drawback is allowed under the said section six, July nineteen hundred and five shall be substituted for August nineteen hundred and one.

Reduction of warehouse delivery charges.
39 & 40 Vict.
c. 35.

6.—(1) In lieu and instead of the additional rates provided for in the Customs Tariff Act, 1876, there shall be charged upon the delivery of the following goods from any warehouse for home consumption, in addition to the duties of Customs and any other charges thereon, for every one hundred pounds of such duties of Customs payable thereon, the rates following (that is to say) :—

	s.	d.
In respect of tobacco	1	3
In respect of other goods	2	6

whether such tobacco or other goods shall have been removed to such warehouse under bond or not.

32 & 33 Vict.
c. 103.

(2) The rate of charge on the delivery of spirits from an excise warehouse under the Customs and Excise Warehousing Act, 1869, shall be reduced from five shillings to two shillings and sixpence.

39 & 40 Vict.
c. 35.

(3) The last paragraph but one of the schedule to the Customs Tariff Act, 1876, beginning "There shall be charged upon the delivery of the following goods," and ending with the words "under bond or not," is hereby repealed.

PART II.

INCOME TAX AND INHABITED HOUSE DUTY.

7.—(1) Income tax for the year beginning on the sixth day of April nineteen hundred and four shall be charged at the rate of one shilling. Income tax for 1904-1905.

(2) All such enactments relating to income tax as were in force on the fifth day of April nineteen hundred and four shall have full force and effect with respect to the duty of income tax hereby granted.

(3) The annual value of any property, which has been adopted for the purpose either of income tax under Schedules A. and B. in the Income Tax Act, 1853, or of inhabited house duty, during the year ending on the fifth day of April nineteen hundred and four, shall be taken as the annual value of such property for the same purpose during the next subsequent year; provided that this subsection— 16 & 17 Vict. c. 34.

(a) so far as respects the duty on inhabited houses in Scotland, shall be construed with the substitution of the twenty-fourth day of May for the fifth day of April; and

(b) shall not apply to the Metropolis as defined by the Valuation (Metropolis) Act, 1869. 32 & 33 Vict. c. 67.

(4) Section thirty-eight of the Finance Act, 1894 (which relates to duty on dividends, &c., paid prior to the passing of the Act), shall be applied with respect to the year which commenced on the sixth day of April nineteen hundred and four, as it was applied with respect to the year which commenced on the sixth day of April eighteen hundred and ninety-four. 57 & 58 Vict. c. 30.

8. Whereas doubts have arisen whether unregistered friendly societies are entitled to the exemption from income tax given under the Acts relating to income tax to persons whose income does not exceed one hundred and sixty pounds, be it enacted that an unregistered friendly society whose income does not exceed one hundred and sixty pounds is entitled to that exemption. Income tax exemption in case of unregistered friendly societies.

9. Section fifty-four of the Income Tax Act, 1853 (under which relief is granted in respect of premiums on life insurances or contracts for deferred annuities), shall apply in relation to life insurances or contracts for deferred annuities effected in or with any insurance company legally established in any British possession, as it applies in relation to life insurances or contracts in or with the insurance companies mentioned in that section. Relief from income tax on insurances with colonial companies. 16 & 17 Vict. c. 34.

PART III.

UNCLAIMED DIVIDENDS ACCOUNT.

10. The National Debt Commissioners shall, as and when the Treasury request, pay into the Exchequer, out of the account under Part VII. of the National Debt Act, 1870, of unclaimed dividends, sums not exceeding in the whole one million pounds, and may for that purpose sell any stock standing to the credit of that account. Payment out of unclaimed dividends account. 33 & 34 Vict. c. 71.

PART IV.

GENERAL.

Construction
and short
title.
39 & 40 Vict.
c. 36.

11.—(1) Part I. of this Act, so far as it relates to duties of customs, shall be construed together with the Customs Consolidation Act, 1876, and the Acts amending that Act, and, so far as it relates to duties of excise, shall be construed together with the Acts which relate to the duties of excise and the management of those duties.

(2) This Act may be cited as the Finance Act, 1904.

SCHEDULE.

TABLE OF RATES OF DRAWBACK.

Section 3.

	Ordinary Rate.	Addition while Additional 1900 Duty is in force.	Total while Additional 1900 Duty is in force.
	<i>s. d.</i>	<i>d.</i>	<i>s. d.</i>
Cigars - - - the lb.	3 3	4	3 7
Cigarettes - - - the lb.	3 1	4	3 5
Cut, roll, cake, or other manu- factured tobacco - - the lb.	3 1	4	3 5
Snuff (not being offal snuff) - the lb.	2 11	4	3 3
Stalks, shorts, or other refuse of tobacco (including offal snuff) - the lb.	2 9	4	3 1

PROVISIONS AFFECTING ALLOWANCE OF DRAWBACK.

Temporary ad-
ditional rates.
63 & 64 Vict.
c. 7.

1. The addition to the rate of drawback, set out in the second column of the above table, shall be allowed only while the additional duty of customs on tobacco, under section two of the Finance Act, 1900, is continued, and for a period of two months after that additional duty ceases.

Drawback on
stalks, &c.

2. The provisions relating to the drawback and exemption from duty allowed in respect of snuff shall apply to stalks, shorts and other refuse of tobacco not of the fineness of snuff, as they apply to snuff.

Deductions in
case of snuff.

3. The deduction from drawback in respect of inorganic matter contained in snuff shall not be made unless the quantity of inorganic matter exceeds the proportion of twenty-two pounds in every hundred pounds weight of snuff, as calculated under the provisions applicable thereto.

Deductions in
case of tobacco
other than
snuff.

4. A deduction from drawback in respect of inorganic matter contained in tobacco shall not be made unless the quantity of inorganic matter exceeds the proportion of twenty-two pounds in every hundred pounds weight, as calculated under the provisions applicable thereto, and where the quantity of inorganic matter exceeds that proportion drawback shall be allowed, but subject to the like deductions as are made in the case of snuff.

5. Notwithstanding anything in section one of the Manufactured Drawback on Tobacco Act, 1863, drawback on tobacco shall be allowed in respect of fractions of a pound in accordance with the provisions of section seventeen of the Customs Consolidation Act, 1876.

6. These provisions shall, for the purpose of subsection two of section six of the Finance Act, 1896, be treated as part of section one of the Manufactured Tobacco Act, 1863, and that subsection shall apply to stalks, shorts and other refuse of tobacco not of the fineness of snuff.

Application of
59 & 60 Vict.
c. 28. s. 6.
26 & 27 Vict.
c. 7.

CHAPTER 8.

An Act to amend the Savings Banks Acts.

[1st August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. After the commencement of this Act an auditor of a Trustee Savings Bank shall be appointed for a term not exceeding one year, provided that a retiring auditor shall be eligible for reappointment.

Auditors of
Trustee Sav-
ings Banks.

2. It shall be lawful for the Trustees of a Trustee Savings Bank and for the Postmaster General to defray all or any of the expenses of any penny savings bank having a deposit account with the Trustees or the Postmaster General, as the case may be, incurred in obtaining necessary account books, stationery, or similar articles and in providing for the audit or inspection of the books and accounts of such penny savings bank, and the expenses so defrayed by the Trustees of a Trustee Savings Bank shall be deemed necessary expenses of a Trustee Savings Bank within the meaning of section two of the Trustee Savings Banks Act, 1863.

Expenses of
penny savin-
g banks.

26 & 27 Vict.
c. 87.

3.—(1) The Trustees of a Trustee Savings Bank may, with the consent of the Inspection Committee, grant to any officer of the Bank who becomes incapable of discharging the duties of his office by reason of old age, or permanent infirmity of body or mind, and who has completed not less than ten years service as an officer of the bank, compensation on his ceasing to hold office, by way either of a yearly allowance or of a gratuity of a capital amount, or by a combination of both these means.

Superannua-
tion of officers
of Trustee Sav-
ings Banks.

(2) A yearly allowance or gratuity under this Act shall not exceed such sum as might be granted by way of yearly allowance or gratuity respectively, under sections two and six of the Superannuation Act, 1859, to persons to whom a superannuation allowance may be granted under that Act, and a combined yearly allowance and gratuity shall, for the purposes of this provision, be treated as a yearly allowance consisting of the actual yearly

22 Vict. c. 26.